

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

Jail Petition No.778 & Criminal Petition No.1391-L of 2017

(Against the judgment dated 28.09.2017, passed by the Lahore High Court, Lahore in Criminal Appeal No.414-J of 2014 and Murder Reference No.268 of 2014)

Mujahid Khan
(in JP No.778/2017)

Munir Ahmed
(in Criminal Petition No.1391-L/2017)

...Petitioner(s)

VERSUS

The State
(in JP No.778/2017)

The State and another
(in Criminal Petition No.1391-L/2017)

...Respondent(s)

For the Petitioner(s): Mr. Ajmal Khan Kanju, ASC
(in JP No.778/2017)

Nemo (in Criminal Petition No.1391-L/2017)

For the State : Mr. Humayun Aslam, DPG, Punjab

Date of hearing: 09.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.-Petitioner Mujahid Khan, charged in case FIR No.520/10 dated 25.11.2010, under sections 302, 109 and 34 of the Pakistan Penal Code, 1860 ('PPC'), registered at Police Station Safdarabad, District Sheikhupura for committing murder of Ghulam Dastgir deceased, was tried by the Additional Sessions Judge,

Sheikhupura ('Trial Court'). Upon conclusion of trial, the Trial Court vide judgment dated 30.06.2014, convicted the petitioner under section 302(b) PPC and sentenced him to death as Ta'azir and to pay Rs.1,00,000/- as compensation under section 544-A of the Code of Criminal Procedure, 1898 ('the Code') and in default thereof to further undergo six months simple imprisonment. Co-accused Sajawal Khan, Latif Khan and Ghulam Mustafa were acquitted through the same judgment by the Trial Court.

2. The Lahore High Court, Lahore ('the High Court'), while dismissing the appeal filed by the petitioner-convict, maintained his conviction under section 302(b) PPC. However, the High Court, taking into account the mitigating circumstances, commuted the sentence of death into imprisonment for life and, consequently, answered Murder Reference No.268 of 2014, sent by the Trial Court for confirmation or otherwise of the death sentence, in the negative vide its judgment dated 28.09.2017 ('the impugned judgment').

3. Through Jail Petition No.778 of 2017, the petitioner-convict seeks leave to appeal against the impugned judgment of the High Court. Conversely, Munir Ahmed, the complainant, has filed Criminal Petition No.1391-L of 2017, seeking enhancement of the sentence of the respondent-convict from imprisonment for life to the normal penalty of death prescribed for the offence under section 302 PPC.

4. The prosecution's case, as narrated in the First Information Report (FIR), is that the complainant Munir Ahmed (PW.4) was engaged in the business of Pedi crop. On 25.11.2010 at about 05:00 p.m., he accompanied by his sons, namely, Ghulam Dastgir (deceased), Ameer Ali, and Muhammad Tanvir, proceeded to the house of Latif Khan for payment of Rs.23500/-, the price of the pedi crop. Upon offering the said amount, a dispute arose between the parties, as Latif Khan and his son Mujahid, the petitioner, along with co-accused Sajawal (acquitted), objected to a purported deduction of Rs. 27,500/- from the total price of the pedi crop amounting to Rs.51,000/-. The disagreement escalated when Latif

Khan became agitated, and his son Mujahid, armed with a 30-bore pistol, together with other co-accused, started hurling abuses and physically grappled with the sons of the complainant. In the meantime, co-accused Mustafa raised a “Lakara” that no one should be allowed to leave the spot and urged the petitioner to fire. Thereupon, the petitioner allegedly fired at Ghulam Dastgir deceased, who got hit and died on the spot. Co-accused Sajawal, Ghulam Ali, Muhammad Sarwar, and Rafaqat Gauji also allegedly fired at the complainant, who miraculously remained unharmed. According to the complainant, the entire occurrence was committed by the aforementioned accused on the abetment of co-accused Shoukat and Latif Khan.

5. We have heard the arguments of learned counsel for the petitioner-convict as well as the learned Deputy Prosecutor General Punjab, appearing on behalf of the State and perused the record, evidence and judgments of the Courts below with their able assistance.

6. The occurrence took place on 25.11.2010 at about 05:00 p.m. at the doorstep of the house of the petitioner-convict Mujahid Khan. The complainant Munir Ahmad (PW.4) and Muhammad Tanveer (PW.5) have furnished ocular account of the incident. In their statements, they deposed that on the fateful day they had visited the house of the petitioner-convict to pay the price of the Pedi crop to his father. A dispute arose on account of deduction of a certain amount from the total price of the pedi crop, which led to annoyance on the part of the father of the petitioner-convict, Latif Khan, and initially resulted in an altercation between the parties. During the course scuffle, the petitioner-convict allegedly fired at the deceased, Ghulam Dastgir, who was present along with his father/the complainant. It is noteworthy that during cross-examination, the defence did not challenge the place of occurrence. The eyewitnesses have consistently and specifically attributed the role of firing to the petitioner-convict, however, they are consistent on the point that only single fire shot was fired by the petitioner-convict at the

deceased which proved fatal. The medical evidence, furnished by Dr. Aman Ullah (PW.2), who conducted the postmortem examination of the deceased, supports the ocular account. He observed a single firearm entrance wound, measuring 1x1 cm, on the lower border of the left lower jaw of the deceased, and opined that the said injury resulted into the unnatural death of the deceased. The petitioner in his statement has not denied the occurrence, however, he has come forward with a bit different version. According to him, during grappling the deceased got hit with his own pistol.

7. On reappraisal of the evidence on record, we are persuaded to hold that the occurrence took place in the heat of the moment, without any premeditation or planning. The initial cause of the incident was the annoyance arising from the deduction in the price of the Pedi crop by the father of the petitioner-convict, which led to a spontaneous altercation and grappling between the parties. The incident occurred at the doorstep of the house of the petitioner-convict. To some extent the motive i.e. settlement on price of the pedi crop between the parties and the mode and manner of the occurrence have not been honestly placed by the prosecution before the Court. It is also significant that the petitioner-convict, at the initial stage, was involved in a grappling/altercation with the deceased and others, which clearly indicates absence of premeditation or intention to kill. The act of firing was a spontaneous reaction in a heated moment. Moreover, only a single fire shot was fired, and no acts of undue brutality were inflicted upon the deceased.

8. In view of the foregoing discussion, the peculiar facts and circumstances of the case clearly fall within the ambit of section 302(c) PPC, and not section 302(b) PPC. The learned trial court and the High Court, while convicting and sentencing the petitioner under section 302(b) PPC, appear to have overlooked the above-discussed facts and circumstances, as well as the settled principles of law laid down by this Court in similar cases.

9. Accordingly, Jail Petition No.778 of 2017 is converted into an appeal and partly allowed. The conviction and sentence of the petitioner-convict under section 302(b) PPC are set aside, however, he is convicted under section 302(c) PPC and sentenced to undergo rigorous imprisonment for fifteen (15) years. The amount of compensation and period in default thereof imposed by the Courts below shall remain intact. Benefit of Section 382-B of the Code is extended to the petitioner-convict.

Criminal Petition No.1391-L of 2017

10. In view of conversion of the conviction and sentence of the respondent-convict from section 302(b) PPC to section 302(c) PPC, this petition for enhancement of sentence has become infructuous which is hereby dismissed.

Judge

Judge

Judge

Lahore the

9th February, 2026

NOT APPROVED FOR REPORTING

M.Siraj Afridi SPS